

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MARALYN MORSON & AFIYA MORSON,

Index No:

Date Purchased:

Plaintiff,

- against -

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JOHN SEARS SHIELD NO:
5952, SGT. VLAD KOGAN,Plaintiff designates
KINGS
County as Place of TrialThe Basis of Venue is
Location of the incident

Defendants.

SUMMONSPlaintiff resides at:
572 E. 51 Street
County of KINGS-----X
To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: August 10, 2016

Defendant=s Address:

DANIEL H. GILBERG
Attorney for Plaintiff
30 Wall Street, 8th Floor
New York, New York 10005
212 709 8097Corporation Counsel
100 Church Street
New York, New York 100071 Police Plaza (NYPD)
New York, New York

POLICE OFFICER JOHN SEARS SHIELD NO: 5952

78 Precinct

65 6TH Avenue

Brooklyn, New York 11217

SGT. VLAD KOGAN

67 Precinct

2820 Snyder Avenue

Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARALYN MORSON AND AFIYA MORSON,

Index No:

Plaintiffs,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JOHN SEARS SHIELD NO:
5952, SGT. VLAD KOGAN,

Defendants.

-----X
Plaintiffs, by their attorney, DANIEL H. GILBERG, ESQ.,

respectfully alleges upon information and belief as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, MARALYN MORSON AGAISNT
DEFENDANTS**

1. Plaintiff, MARALYN MORSON, is an African-American female and at all relevant times a resident of the County of Kings, City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the NEW YORK CITY POLICE DEPARTMENT, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the

4. That at all times hereinafter mentioned, the individually named defendants, POLICE OFFICER JOHN SEARS and SGT. VLAD KOGAN, were duly sworn police officers of the said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants either personally or through their employees were acting under color of State Law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants were acting within the scope of their employment by defendant, THE CITY OF NEW YORK.

7. On or about November 30, 2015 and within ninety (90) days after the claim herein arose the Plaintiff, MARALYN MORSON, served a Notice of Claim, in writing, sworn to on her behalf upon the Defendant, THE CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, THE CITY OF NEW YORK, the nature, place, time and manner in which the claim arose, the items of damages and injuries sustained so far as was then determinable.

8. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one (1) year after the happening of the event upon which the claims are based.

9. On June 9, 2016 Plaintiff, MARALYN MORSON, complied with the request of Defendant, THE CITY OF NEW YORK, and submitted to an oral examination pursuant to Section 50-H of the General Municipal Law.

10. On September 22, 2012, Plaintiff, MARALYN MORSON, was falsely arrested inside the premises located at 185 Erasmus Street, in the County of Kings, City and State of New York, by Defendant, POLICE OFFICER JOHN SEARS, SHIELD NO: 5952.

11. On or about September 22, 2012, and from that time until her acquittal of all criminal charges, on September 17, 2015, before the Honorable Alexander Jeong in Supreme Court Criminal Court, Kings County, Defendants, THE CITY OF NEW YORK, POLICE OFFICER JOHN SEARS, SHIELD NO: 5952, and SGT. VLAD KOGEN, under Indictment No: 8409/12 deliberately and maliciously prosecuted Plaintiff, MARALYN MORSON, an innocent woman, without probable cause, by filing or causing a Criminal Court complaint to be filed in the Criminal Court, Kings County, for the purpose of falsely accusing the Plaintiff, MARALYN MORSON, of violations of criminal laws of the State of New York.

12. The Defendants, their agents, servants and/or employees failed to take reasonable steps to stop the prosecution of the Plaintiff, MARALYN MORSON and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce the prosecution of the Plaintiff, MARALYN MORSON and due to the absence of probable cause malice can be inferred.

13. The commencement of these criminal proceedings under Indictment No: 8409/12 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

14. The criminal proceedings were terminated in Plaintiff, MARALYN MORSON's favor on or about September 17, 2015 when she was acquitted of all charges against her during a jury trial which took place in Supreme Court, Kings County before the Honorable Alexander Jeong.

15. As a result of the malicious prosecution, Plaintiff, MARALYN MORSON has sustained damages. Plaintiff was deprived of her liberty, suffered the humiliation, mental anguish and dignity, frustration of an unjust criminal prosecution and was caused to incur substantial attorney and expert fees during the three (3) years that the criminal prosecution took place.

16. By reason of the foregoing, Plaintiff, MARALYN MORSON sustained compensatory damages which exceed the jurisdictional limits of all lower Courts, which might otherwise have jurisdiction herein.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR MALICIOUS PROSECUTION UNDER
42 U.S.C. SECTION 1983**

17. Plaintiff, MARALYN MORSON, repeats, reiterates and realleges each and every allegation contained in Paragraphs "1" – "16" with the same force and effect as if more fully set forth at length herein.

18. Defendants, their servants, agents and/or employees misrepresented and falsified evidence before the District Attorney of Kings County.

19. Defendants, their servants, agents and/or employees did not make a complete and full statement of facts to the District Attorney of Kings County.

20. Defendants, their servants, agents and/or employees withheld exculpatory evidence from the District Attorney.

21. Defendants, their servants, agents and/or employees were directly and actively involved in the initiation of criminal proceedings against Plaintiff, MARALYN MORSON.

22. Defendants, their servants, agents and/or employees lacked probable cause to initiate criminal proceedings against the Plaintiff, MARALYN MORSON.

23. Defendants, their servants, agents and/or employees acted with malice in initiating criminal proceedings against the Plaintiff, MARALYN MORSON.

24. Defendants, their servants, agents and/or employees were directly and actively involved in the continuation of criminal proceedings against Plaintiff, MARALYN MORSON.

25. Defendants, their servants, agents and/or employees lacked probable cause to continue criminal proceedings against the Plaintiff, MARALYN MORSON.

26. Defendants, their servants, agents and/or employees acted with malice in continuing criminal proceedings against the Plaintiff, MARALYN MORSON.

27. Defendants, their servants, agents and/or employees misrepresented and falsified evidence throughout all phases of the criminal proceedings.

28. The criminal proceedings were terminated in Plaintiff, MARALYN MORSON's favor on or about September 17, 2015 when she was acquitted of all charges against her during a jury trial which took place in Supreme Court, Kings County before Honorable Alexander Jeong.

29. As a result of the foregoing, the Plaintiff, MARALYN MORSON has sustained damages. The Plaintiff was deprived of her liberty, suffered humiliation, mental anguish, indignity, frustration of an unjust criminal prosecution. The Plaintiff made numerous Court appearances and incurred substantial attorney and expert fees in connection with defending the unjust and malicious criminal prosecution.

30. By reason of the foregoing, the Plaintiff, MARALYN MORSON sustained compensatory damages which exceeds the jurisdictional limits of all lower Courts which might otherwise have jurisdiction herein.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF AFIYA MORSON FOR
MALICIOUS PROSECUTION UNDER
COMMON LAW AGAINST THE DEFENDANTS**

31. Plaintiff, AFIYA MORSON, repeats, reiterates and realleges each and every allegation contained in Paragraphs "1" – "30" with the same force and effect as if more fully set forth at length herein.

32. Plaintiff, AFIYA MORSON, is an African American female and at all relevant times, a resident of the County of Kings, City and State of New York.

33. On November 29, 2012 Plaintiff, AFIYA MORSON, was falsely arrested and charged with numerous felonies including assault, burglary and robbery in connection with an alleged assault on complaining witness, Victor

Roach inside 185 Erasmus Street in the County of Kings, City and State of New York.

34. On September 22, 2012 complaining witness, Victor Roach, never mentioned to Defendant, POLICE OFFICER JOHN SEARS that Plaintiff, AFIYA MORSON had been a participant in the alleged assault, burglary and robbery.

35. In connection with Plaintiff, AFIYA MORSON's arrest Defendants filed misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office and permitted and allowed false and misleading testimony to be presented to the Grand Jury.

36. On or about September 17, 2015 all charges against Plaintiff, AFIYA MORSON were dismissed by way of acquittal during a jury trial in Supreme Court, Kings County before the Honorable Alexander Jeong.

37. On or about the 30 day of November, 2015 and within ninety (90) days after the claim herein arose, the Plaintiff, AFIYA MORSON, served a Notice of Claim in writing sworn to on her behalf upon the Defendant, THE CITY OF NEW YORK by delivering a copy thereof, in duplicate, to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, THE CITY OF NEW YORK of the nature, place, time and manner in which the claim arose. The items of damages and injuries sustained as was then determinable.

38. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof, has

been neglected or refused, and this action has been commenced within one (1) year after the happening of the event upon which the claim arose.

39. Defendant, THE CITY OF NEW YORK, since the filing of Plaintiff, AFIYA MORSON's Notice of Claim on November 30, 2015 has made no request for an oral examination pursuant to Section 50-H of the General Municipal Law within the applicable period.

40. On or about November 29, 2012 and from that time until her acquittal of all criminal charges on September 17, 2015 before the Honorable Alexander Jeong, in the Supreme Court, Criminal Court, Kings County, Defendants, their agents, servants and/or employees, under Indictment No: 8409/12 deliberately and maliciously prosecuted Plaintiff, AFIYA MORSON, an innocent woman without probable cause by filing or causing a Criminal Court complaint to be filed in the Criminal Court, Kings County, for the purpose of falsely accusing the Plaintiff, AFIYA MORSON of violations of Criminal Laws of the State of New York.

41. The Defendants, their agents, servants and/or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

42. The commencement of these criminal proceedings against AFIYA MORSON, under Indictment No: 8409/12 was malicious and began in malice and without probable cause so that the proceedings could succeed by the Defendant.

43. As a result of the malicious prosecution Plaintiff, AFIYA MORSON has sustained damages. Plaintiff was deprived of her liberty, suffered humiliation, mental anguish, indignity, frustration of an unjust criminal prosecution. The Plaintiff, AFIYA MORSON made numerous Court appearances was caused to lose job opportunities and lost income as a result thereof.

44. By reason of the foregoing, Plaintiff AFIYA MORSON sustained compensatory and special damages which exceeds the jurisdictional limits of all lower Courts which might otherwise have jurisdiction herein.

WHEREFORE, Plaintiff MARALYN MORSON demands judgment against Defendants on the First and Second Causes of Action and Plaintiff, AFIYA MORSON demands judgment against Defendants on the Third Cause of Action in an amount to be determined by a jury in this action, plus an award of reasonable attorney's fees pursuant to 42 U.S.C. Section 1988 as well as the costs and disbursements of this action.

Dated: New York, New York
August 12, 2016



DANIEL H. GILBERG
Attorney for Plaintiff
30 Wall Street, 8th Floor
New York, New York 10005
212 709 8097

ATTORNEY VERIFICATION

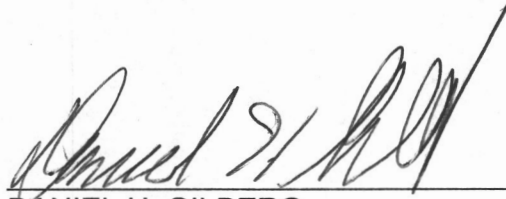
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

DANIEL H. GILBERG, an attorney admitted to practice in the Courts of New York State affirms to the following:

I am the attorney for the plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff is because plaintiff resides outside the county where deponent maintains his office.

Dated: New York, New York
August 16, 2016



DANIEL H. GILBERG

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
MARALYN MORSON and AFIYA MORSON,

Plaintiffs,

- against -

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JOHN SEARS,
SHIELD NO: 5952 and POLICE OFFICER
SGT. VLAD KOGAN,

Defendants.
-----X

SUMMONS AND VERIFIED COMPLAINT

DANIEL H. GILBERG, ESQ.
Attorney for Plaintiff
30 Wall Street, 8th Floor
New York, New York 10005
212 709 8097